

Board of County Commissioners

Minutes of the Proceedings - Final

Historic Courthouse
310 W 19th Street
Cheyenne, WY 82001



Tuesday, January 16, 2024

3:30 PM

Commissioners Board Room

Roll Call/Call to Order

Present: Chairman Brian Lovett, Vice Chairman Gunnar Malm, Commissioner Linda Heath, Commissioner K. N. Buck Holmes, Commissioner Troy Thompson

Minutes

1. Consideration of the Minutes of Proceedings for Jan 2, 2024.

[24 - 017](#)

Attachments: [Draft Minutes Jan 2, 2024](#)

A motion was made by Commissioner Heath, seconded by Commissioner Holmes, that this agenda item be approved. The motion carried by the following vote:

Aye: Lovett, Malm, Heath, Holmes, Thompson

Consent Agenda

Approval of the Consent Agenda

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, to approve the Consent Agenda. The motion carried by the following vote:

Aye: Lovett, Malm, Heath, Holmes, Thompson

2. Consideration of a memorandum of understanding and agreement between Laramie County, WY, and Visit Cheyenne for the purchase and use of an indoor arena at the Archer Complex.

[24 - 034](#)

Attachments: [MOU and Agreement, Visit Cheyenne](#)

This agenda item was approved.

3. Consideration of the ratification of five second amendments to US Dept of the Treasury Coronavirus State and Local Fiscal Recovery Fund. These amendments extend the term of the nonprofit subaward contracts from Dec 31, 2023 to June 30, 2024, for the following: Carpenter School & Community Foundation, Wyoming Family Homeownership Program dba My Front Door, Pine Bluffs Lions Club, Town of Albin, and Unaccompanied Students Initiative.

[24 - 013](#)

Attachments: [Second Amendments, Five ARPA Nonprofits](#)

This agenda item was approved.

4. Consideration of the ratification of a painting services contract between Laramie County, WY, and Custom Home Painters and Concrete Coatings to provide painting service work for the Sheriff's office and Detention Center. [24 - 032](#)

Attachments: [Contract, Custom Home Painters and Concrete Coatings](#)

This agenda item was approved.

5. Consideration of the deletion from the Sheriff's fixed asset inventory of a 2018 Ford Explorer to be scrapped. [24 - 016](#)

Attachments: [Asset Deletion, Sheriff, 2018 Ford](#)

This agenda item was approved.

6. Consideration of the ratification of an amendment extending the term of the original agreement (220719-22) between Laramie County, WY, and Ayres Assoc, Inc. [24 - 023](#)

Attachments: [Amendment, Ayres Assoc, Inc](#)

This agenda item was approved.

7. Consideration of separate amendments extending the term of the original agreements (220705-23, 220719-27, 220719-26 and 220719-23) between Laramie County, WY, and Benchmark Engineers, PC, Inberg-Miller Engineers, HDR Engineering, Inc, and CivilWorx, LLC. [24 - 029](#)

Attachments: [Amendment, BenchMark Engineers, PC](#)
[Amendment, Inberg-Miller Engineers](#)
[Amendment, HDR Engineering, Inc](#)
[Amendment, CivilWorx, LLC](#)

This agenda item was approved.

8. Consideration of three separate equipment/electricity contracts between Laramie County, WY, and Ryan Krug, Laramie County Fire Authority, and Laramie County School District #2 to provide electricity on an as-needed basis to heat Public Works equipment. These agreements are for fiscal year 2024. [24 - 030](#)

Attachments: [FY24 Agreement, Ryan Krug](#)
[FY24 Agreement, Laramie County Fire Authority](#)
[FY24 Agreement, Laramie County School District #2](#)

This agenda item was approved.

9. Consideration of the ratification of an agreement between Laramie County, WY, and WY MSHA State Grant Program in an amount not to exceed \$2,847.50 to provide MSHA training to Public Works employees as described in attachment A. [24 - 014](#)

Attachments: [Agreement, WY MSHA State Grant Program](#)

This agenda item was approved.

10. Consideration of a catering permit submitted by S&W Properties, LLC, dba Vinos Wine and Spirits, for an event on Feb 25, 2024, at the Archer Complex. [24 - 019](#)

Attachments: [24-hour Permit, Vinos Wine and Spirits, Feb 25, 2024](#)

This agenda item was approved.

11. Consideration of a catering permit submitted by The Knotty Pine Saloon for an event on June 19, 2024, at the Archer Complex. [24 - 026](#)

Attachments: [24-hour Permit, The Knotty Pine Saloon, Jan 19, 2024](#)

This agenda item was approved.

12. Consideration of a catering permit submitted by DeLancey Enterprises, LLC, dba Hell on Wheels Package Liquors, for an event on Feb 10, 2024, at the Archer Complex. [24 - 033](#)

Attachments: [24-hour Permit, Hell on Wheels Package Liquors, Feb 10, 2024](#)

This agenda item was approved.

13. Consideration of a manufacturer's off-premise permit submitted by WMC/PDB, LLC, dba Pine Bluffs Distilling, for an event on Feb 10, 2024, at the Archer Complex. [24 - 021](#)

Attachments: [24-hour Permit, Pine Bluffs Distilling, Feb 10, 2024](#)

This agenda item was approved.

14. Consideration of a two-day manufacturer's off-premise permit submitted by WMC/PBD, LLC, dba Pine Bluffs Distilling, for an event on Feb 17 and 18, 2024, at the Archer Complex. [24 - 020](#)

Attachments: [24-hour Permit, Pine Bluffs Distilling, Feb 17 and 18, 2024](#)

This agenda item was approved.

15. Consideration of the revised Nov 2023 fees collected by the Sheriff from \$130,885.00 to \$127,885.00.

[24 - 022](#)

Attachments: [Revised Nov Fees 2023, Sheriff](#)

This agenda item was approved.

Report & Public Petitions

16. Presentation of Wyoming Downs "Gateways to Wyoming East and West."

[24 - 027](#)

Attachments: [Presentation, Gateway East, LLC](#)

Eric Nelson, Wyoming Downs, gave an overview of the project.

Chairman Lovett opened the meeting for PUBLIC COMMENT. Linda Coatney, resident, asked how much development was planned at Terry Bison Ranch, whether the development would be primarily in Wyoming or Colorado, where customers would come from, and if it would compete with Cheyenne Frontier Days (CFD).

Mr. Nelson said plans include hotels, expansion of the RV facilities, an indoor arena, rodeo facilities, an Indian relay, and a race track facility. He said development would be on both sides of the Wyoming/Colorado state line, but the majority would be on the Wyoming side. Mr. Nelson noted the targeted customers would be from Colorado. He said he hopes to partner with CFD.

Hearing no further PUBLIC COMMENT, Chairman Lovett closed the comment period.

The presentation was received and filed.

Resolutions

17. Consideration of a resolution giving public notice of Laramie County's intent to adopt Laramie County Public Works Snow and Ice Control Policy.

[24 - 028](#)

Attachments: [Resolution, Notice of Intent Public Works Snow and Ice Policy](#)

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, that this agenda item be approved. The motion carried by the following vote:

Aye: Lovett, Malm, Heath, Holmes, Thompson

Grants

18. Consideration of an agreement between Laramie County, WY, and Power Motive Corp in an amount not to exceed \$382,950 to purchase an automated radial stacker with a portable transfer conveyor. [24 - 024](#)

Attachments: [Agreement, Power Motive Corp](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, that this agenda item be approved. The motion carried by the following vote:

Aye: Lovett, Malm, Heath, Holmes, Thompson

Contract/Agreement/Leases

Commissioner Malm announced he had a conflict of interest with agenda item #19.

19. Consideration of the first amendment to the agreement (231003-30) between Laramie County, WY, and Voss Family Limited Partnership in the amount of \$8,165,000 for the purchase and sale of real estate at 2020 Carey Ave. [24 - 025](#)

Attachments: [Amendment, Voss Family Limited Partnership](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Thompson, that this agenda item be approved. The motion carried by the following vote:

Aye: Lovett, Heath, Holmes, Thompson

Recused: Malm

Land Use:Variances/Board App./Plats

20. PUBLIC HEARING regarding the proposed Ready Wyoming Bison to West Cheyenne Orchard Valley King Ranch 115kV Transmission Line Project. [24 - 031](#)

Attachments: [Public Hearing, Ready WY, Bison to West Cheyenne 115kV Transmission Line](#)

Bryce Hamilton, Planning, said Electrical Consultants, Inc, on behalf of Cheyenne Light, Fuel & Power (Black Hills Energy), submitted several permitting applications to approve a large high-power transmission line project. He stated that under Laramie County Land Use Regulations 2-2-127, the Board of County Commissioners is required to hold a public hearing on every proposal to construct high-power transmission lines in the county to gather public opinion and ensure minimal disruption to residents and land users. He said while the board does not have the discretion to disapprove the applications, the hearing allows the developer to listen to the public's

concerns, answer any questions and make appropriate changes.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Guy Bouker, resident, questioned the size of the substation and requested a greenway as a buffer. Linda Coatney, resident, asked about the location of the transmission line relative to her property.

Jim Wasson, Black Hills Energy, explained the site would be around 40 acres and that he would contact Mr. Bouker with more information. Mr. Wasson informed Ms. Coatney that the closest the transmission line would be is approximately 3400' south of her property.

Hearing no further PUBLIC COMMENT, Chairman Lovett closed the hearing.

The report was received and filed.

The meeting adjourned at 4:03 pm.

CERTIFICATION

I, Debra K. Lee, Clerk of Laramie County, do hereby certify the above to be a true and correct copy of the Minutes of the Proceedings for Tuesday, Jan 16, 2024.

Approved by : Debra K. Lee, County Clerk

Reviewed by : Brian Lovett, Chairman,
Board of County Commissioners

Reasonable Accommodations

This information is available in alternate forms. If reasonable accommodations are required, contact Laramie County Human Resources at (307) 633-4355 or lchr320@laramiecounty.com at least two business days prior to the meeting. Per WS §18-3-516(f), access to county information can be obtained at laramiecountywy.gov.